COLD PAPER WAR

THE PRO SE LITIGATION GUIDE

VOLUME 2 — ADVANCED LITIGATION OPERATIONS

Working Templates, Discovery Architecture, Preservation, Records Strategy, and Litigation Control

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“Document first. Verify twice. Litigate precisely. Publish responsibly.”

EDITORIAL AND LEGAL NOTICE

This volume is an educational drafting and organizational resource. It is not legal advice, does not establish an attorney-client relationship, and is not a substitute for jurisdiction-specific legal research. Federal Rules of Civil Procedure, local rules, standing orders, statutes, filing requirements, service rules, and court practices must be checked in their current form before use.

Templates should be treated as starting instruments, not magic words. A preservation notice, discovery request, subpoena, motion, or complaint must be adapted to the facts, procedural posture, jurisdiction, and relief actually available.

OPERATING PRINCIPLE

> **The objective of advanced pro se practice is not maximum volume. It is maximum evidentiary clarity with minimum unnecessary procedural friction.**

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1. LITIGATION COMMAND CENTER

1.1 The Master Case File

Create one controlled case repository containing pleadings, orders, correspondence, discovery, evidence, public-records productions, research, deadlines, and settlement material. Use consistent naming conventions and never allow multiple competing “master” versions of the same document.

1.2 File Naming Protocol

A practical naming structure is: YYYY-MM-DD_DocumentType_Source_Subject_Version. Example: 2026-10-08_PreservationNotice_Agency_ESI_v1. Avoid names such as “final-final2-revised.” Version confusion is an avoidable evidentiary and administrative defect.

1.3 Deadline Control

Maintain a deadline ledger with the source of every deadline: court order, rule, statute, service date, discovery response date, conference requirement, or local rule. Record both the triggering event and the computed deadline. When uncertain, verify rather than guess.

1.4 The Four-Column Litigation Dashboard

Track every major issue as: Issue → Evidence → Governing Authority → Next Procedural Action. This prevents research from becoming detached from the actual case.

2. RULE 37 PRESERVATION AND SPOLIATION ARCHITECTURE

2.1 Preservation Is a Process

A preservation notice should identify the dispute and reasonably foreseeable categories of relevant information. The notice should be specific enough to be operationally useful without pretending to control every aspect of the recipient’s internal legal process.

2.2 Preservation Categories

Consider custodians, email, text messages, cloud storage, body-camera video, CAD/RMS records, access logs, photographs, surveillance data, contracts, vendor records, policies, audit logs, backups, and deletion schedules where relevant.

2.3 Preservation Failure Analysis

If relevant information is lost, identify what was lost, when it was likely lost, who controlled it, whether litigation was reasonably anticipated, what preservation steps were taken, whether the loss was preventable, and what prejudice resulted. Do not label conduct “spoliation” merely because a desired record is missing.

2.4 Sanctions Are a Remedy, Not a Starting Point

A disciplined Rule 37 strategy establishes the factual foundation before requesting sanctions. The requested remedy should be proportional to the proven preservation failure and the governing rule.

3. RULE 34 ESI PRODUCTION REQUESTS

3.1 Request the Record, Not the Rhetoric

A production request should identify the documents or ESI sought and explain the relevant subject matter through definitions and instructions. Avoid embedding argumentative accusations into requests.

3.2 ESI Specifications

Where appropriate, consider native format, metadata, attachments, file paths, date ranges, custodians, search parameters, and the relationship between parent messages and attachments. Ask for the form of production permitted by the governing rules and case-specific agreements.

3.3 Proportionality

Tie each category to an element, defense, damages issue, jurisdictional question, or preservation dispute. The more burdensome the request, the stronger the explanation should be for why the information matters.

4. RULE 36 REQUESTS FOR ADMISSION

4.1 Narrow the Battlefield

Requests for admission are particularly useful for establishing uncontested facts, authenticity, dates, ownership, receipt of notices, existence of policies, or other matters that can be admitted or denied without argument.

4.2 Avoid Compound Ambushes

A clean request generally addresses one proposition at a time. Avoid combining multiple factual propositions into a single request where that structure makes a fair response difficult.

4.3 Build Admissions Into the Case Map

Each admission should have a purpose. Ask: If admitted, what issue disappears? If denied, what evidence will be needed to prove it? If the answer is “nothing,” reconsider the request.

5. RULE 33 INTERROGATORY STRATEGY

5.1 Interrogatories as Identity and Decision-Path Tools

Interrogatories can be used to identify custodians, decision-makers, witnesses, policies, communications, factual contentions, and the basis for defenses where permitted.

5.2 The Decision Chain

For institutional disputes, build questions around who initiated an action, who approved it, who implemented it, what information was considered, what policy governed it, and what records memorialize the decision.

5.3 Avoid Asking the Opponent to Write Your Brief

Interrogatories should obtain factual information within the permitted scope. Legal conclusions, attorney work product, and privileged material raise separate issues and should not be treated as ordinary factual discovery.

6. RULE 45 NONPARTY DISCOVERY

6.1 Identify the True Custodian

The most useful evidence may sit with a vendor, contractor, technology provider, insurer, transit operator, telecommunications provider, or other nonparty. Determine whether the information is actually held by that entity before designing a subpoena.

6.2 Geographic and Procedural Requirements

Rule 45 contains specific requirements concerning issuance, service, compliance, objections, and geographic limits. Verify the current rule and the issuing court’s procedures before service.

6.3 Vendor Evidence

For technology disputes, potentially relevant materials can include contracts, data dictionaries, retention policies, audit records, system descriptions, invoices, user-access records, and communications concerning the disputed deployment.

7. MONELL EVIDENCE DEVELOPMENT

7.1 Move From Allegation to Proof

A Monell theory becomes stronger when the record identifies the relevant policy, custom, policymaker, training deficiency, supervision problem, or other recognized municipal-liability theory and connects it to the constitutional injury.

7.2 Evidence Sources

Investigate ordinances, written policies, directives, training materials, disciplinary records where lawfully obtainable, prior complaints, internal reviews, meeting minutes, procurement documents, contracts, budget records, audit reports, and public statements by authorized decision-makers.

7.3 Pattern Evidence Grid

For each allegedly similar incident, record date, actor, conduct, legal issue, factual similarity, outcome, notice evidence, and source. Do not treat a long list of unrelated incidents as a legal pattern merely because they involve the same institution.

8. PUBLIC-RECORDS ESCALATION SYSTEM

8.1 Stage One — Targeted Request

Start with a defined record category, time period, agency, and requested format. Preserve the submission and proof of receipt.

8.2 Stage Two — Clarification and Narrowing

If an agency raises burden or ambiguity, determine whether narrowing can produce the critical records without surrendering the central issue.

8.3 Stage Three — Deficiency Letter

Identify each missing category, response defect, exemption claim, fee issue, or unexplained delay. Cite the applicable state law and agency obligation only after verifying the current statute.

8.4 Stage Four — Administrative or Judicial Escalation

If the jurisdiction provides an appeal, enforcement mechanism, or judicial review process, calendar the relevant deadline and preserve the complete request-and-response chain. Never assume that an agency’s informal position is the final legal word.

9. AUTHENTICATION AND EVIDENCE CONTROL

9.1 Provenance

For every significant exhibit, record who produced it, how it was obtained, when it was received, and whether the copy is complete. Preserve originals separately from working copies.

9.2 Digital Evidence

Retain native files when possible. Record filenames, timestamps, hashes where appropriate, source device or account when known, and any conversion performed. Do not edit an original evidence file.

9.3 Exhibit Discipline

Use a single exhibit numbering system. Maintain an exhibit index that identifies the document, date, source, relevance, and authentication pathway.

10. MOTION PRACTICE AND OPPOSITION ARCHITECTURE

10.1 The Four-Part Motion

A useful structure is: procedural posture; governing legal standard; application to the record; precise requested relief.

10.2 Opposition to Dismissal

Address jurisdiction first where applicable, then pleading sufficiency, each challenged claim, immunity, causation, and the requested disposition. Do not substitute factual volume for legal elements.

10.3 The Bad-Faith Allegation Problem

Bad faith is a serious characterization. Use it only when supported by specific facts and the applicable legal standard. Describe conduct first; apply the legal characterization second.

10.4 Relief Requested

End with a concrete proposed ruling. Courts need to know exactly what action is requested: deny the motion, dismiss a particular claim, compel a specified production, preserve evidence, permit amendment, or grant another legally available remedy.

11. TIMELINE, EXHIBIT, AND RECORD MANAGEMENT

11.1 Master Chronology

Every important event receives a date, source, actor, and evidentiary reference. Separate confirmed events from disputed assertions.

11.2 Exhibit Index

Use columns for Exhibit, Date, Description, Source, Authentication, Claim/Defense, and Filing Location.

11.3 Record Crosswalk

For every major proposition in a brief, identify the record citation that supports it. If there is no citation, determine whether the proposition is actually established, merely alleged, or should be removed.

12. SETTLEMENT AND RISK ANALYSIS

12.1 Liability Risk

Estimate risk by claim and defendant rather than assigning one emotional value to the entire dispute. Consider jurisdiction, immunity, causation, evidence quality, adverse authority, damages, and procedural posture.

12.2 Litigation Cost

Account for filing fees, service, discovery, expert needs, travel, document processing, time, and opportunity cost where relevant. A legally strong case can still become strategically weak if unmanaged.

12.3 Settlement Architecture

A settlement proposal should identify the dispute, the material risks, the requested terms, the response deadline if appropriate, and the consequences of non-resolution without making improper threats.

APPENDIX A — MODEL LITIGATION-HOLD NOTICE

Re: Preservation of Potentially Relevant Records

This correspondence provides notice that litigation is reasonably anticipated concerning [matter]. Please preserve potentially relevant records and electronically stored information within your possession, custody, or control, including communications, reports, photographs, video, logs, policies, contracts, system records, and other materials reasonably related to [defined subject] for the period [date range].

This request is intended to preserve potentially relevant information pending further identification and formal discovery. Please take reasonable steps consistent with applicable law and your legal obligations to prevent relevant information from being lost, altered, or destroyed. If a litigation hold has already been issued, please identify the appropriate legal or records contact.

APPENDIX B — ESI PRODUCTION REQUEST FRAMEWORK

■ Define the relevant time period.

■ Identify custodians or systems where appropriate.

■ Identify categories of documents and ESI.

■ Specify the relevant subject matter.

■ Address attachments and related records.

■ Request an appropriate production format.

■ Explain why the information is relevant and proportional.

■ Identify any proposed search limitation or protocol where necessary.

APPENDIX C — REQUESTS FOR ADMISSION WORKSHEET

No.	Proposition	Purpose	If denied, proof needed
1			
2			
3			
4			
5			
6			

7			
8			

APPENDIX D — EVIDENCE INDEX

Exhibit	Date	Description	Source	Authentication	Claim/Defense
Ex. 1					
Ex. 2					
Ex. 3					
Ex. 4					
Ex. 5					
Ex. 6					
Ex. 7					
Ex. 8					
Ex. 9					
Ex. 10					

APPENDIX E — CASE-CONTROL DASHBOARD

Issue	Evidence	Authority	Deadline	Next Action	Status
Jurisdiction					
Preservation					
Discovery					
Public records					
Motions					
Damages					
Settlement					

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This volume is designed to become part of a larger open-source Cold Paper War series. Future volumes can add jurisdiction-specific modules, annotated primary authorities, model pleadings, discovery objections and responses, deposition preparation, appellate practice, records litigation, technology-audit protocols, and publication standards.